

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1358

By: Olsen

AS INTRODUCED

An Act relating to firearms; amending 21 O.S. 2021, Section 1277, which relates to the unlawful carry of firearms; clarifying manner in which firearms may be carried on public college, university, and technology center school property; deleting certain construing provision; deleting written consent requirement; deleting authorization to notify the Oklahoma State Bureau of Investigation of certain violations; eliminating administrative fines and option to suspend handgun licenses; authorizing the carry of concealed handguns into or upon public college, university, and technology center school property; allowing public colleges, universities and technology center schools to prohibit certain persons from carrying concealed handguns into event venues; defining term; providing immunity from liability; providing construing provisions; allowing public or private colleges, universities and technology center schools to seek redress or damages under certain circumstances; exempting public or private colleges, universities and technology center schools from any responsibility for losses or damages; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1277, is amended to read as follows:

Section 1277.

1 UNLAWFUL CARRY IN CERTAIN PLACES

2 A. It shall be unlawful for any person, including a person in
3 possession of a valid handgun license issued pursuant to the
4 provisions of the Oklahoma Self-Defense Act, to carry any concealed
5 or unconcealed firearm into any of the following places:

6 1. Any structure, building, or office space which is owned or
7 leased by a city, town, county, state or federal governmental
8 authority for the purpose of conducting business with the public;

9 2. Any courthouse, courtroom, prison, jail, detention facility
10 or any facility used to process, hold or house arrested persons,
11 prisoners or persons alleged delinquent or adjudicated delinquent,
12 except as provided in Section 21 of Title 57 of the Oklahoma
13 Statutes;

14 3. Any public or private elementary or public or private
15 secondary school, except as provided in subsections C and D of this
16 section;

17 4. Any publicly owned or operated sports arena or venue during
18 a professional sporting event, unless allowed by the event holder;

19 5. Any place where gambling is authorized by law, unless
20 allowed by the property owner;

21 6. Any other place specifically prohibited by law; and

22 7. Any property set aside by a county, city, town, public trust
23 with a county, city or town as a beneficiary, or state governmental
24 authority for an event that is secured with minimum-security

1 provisions. For purposes of this paragraph, a minimum-security
2 provision consists of a location that is secured utilizing the
3 following:

- 4 a. a metallic-style security fence that is at least eight
5 (8) feet in height that encompasses the property and
6 is secured in such a way as to deter unauthorized
7 entry,
- 8 b. controlled access points staffed by a uniformed,
9 commissioned peace officer, and
- 10 c. a metal detector whereby persons walk or otherwise
11 travel with their property through or by the metal
12 detector.

13 B. It shall be lawful for a person to carry a concealed or
14 unconcealed firearm on the following properties:

15 1. Any property set aside for the use or parking of any
16 vehicle, whether attended or unattended, by a city, town, county,
17 state or federal governmental authority;

18 2. Any property set aside for the use or parking of any
19 vehicle, whether attended or unattended, which is open to the
20 public, or by any entity engaged in gambling authorized by law;

21 3. Any property adjacent to a structure, building or office
22 space in which concealed or unconcealed weapons are prohibited by
23 the provisions of this section;

1 4. Any property designated by a city, town, county or state
2 governmental authority as a park, recreational area, wildlife
3 refuge, wildlife management area or fairgrounds; provided, nothing
4 in this paragraph shall be construed to authorize any entry by a
5 person in possession of a concealed or unconcealed firearm into any
6 structure, building, office space or event which is specifically
7 prohibited by the provisions of subsection A of this section;

8 5. Any property set aside by a public or private elementary or
9 secondary school for the use or parking of any vehicle, whether
10 attended or unattended; provided, however, the firearm shall be
11 stored and hidden from view in a locked motor vehicle when the motor
12 vehicle is left unattended on school property; and

13 6. Any public property set aside temporarily by a county, city,
14 town, public trust with a county, city or town as a beneficiary, or
15 state governmental authority for the holder of an event permit that
16 is without minimum-security provisions, as such term is defined in
17 paragraph 7 of subsection A of this section; provided, the carry of
18 firearms within said permitted event area shall be limited to
19 concealed carry of a handgun unless otherwise authorized by the
20 holder of the event permit.

21 Nothing contained in any provision of this subsection or
22 subsection C of this section shall be construed to authorize or
23 allow any person in control of any place described in subsection A
24 of this section to establish any policy or rule that has the effect

1 of prohibiting any person in lawful possession of a handgun license
2 or otherwise in lawful possession of a firearm from carrying or
3 possessing the firearm on the property described in this subsection.

4 C. A concealed or unconcealed weapon may be carried onto
5 private school property or in any school bus or vehicle used by any
6 private school for transportation of students or teachers by a
7 person who is licensed pursuant to the Oklahoma Self-Defense Act,
8 provided a policy has been adopted by the governing entity of the
9 private school that authorizes the carrying and possession of a
10 weapon on private school property or in any school bus or vehicle
11 used by a private school. Except for acts of gross negligence or
12 willful or wanton misconduct, a governing entity of a private school
13 that adopts a policy which authorizes the possession of a weapon on
14 private school property, a school bus or vehicle used by the private
15 school shall not be subject to liability for any injuries arising
16 from the adoption of the policy. The provisions of this subsection
17 shall not apply to claims pursuant to the Administrative Workers'
18 Compensation Act.

19 D. Notwithstanding paragraph 3 of subsection A of this section,
20 a board of education of a school district may adopt a policy
21 pursuant to Section 5-149.2 of Title 70 of the Oklahoma Statutes to
22 authorize the carrying of a handgun onto school property by school
23 personnel specifically designated by the board of education,
24 provided such personnel either:

1 1. Possess a valid armed security guard license as provided for
2 in Section 1750.1 et seq. of Title 59 of the Oklahoma Statutes; or

3 2. Hold a valid reserve peace officer certification as provided
4 for in Section 3311 of Title 70 of the Oklahoma Statutes.

5 Nothing in this subsection shall be construed to restrict authority
6 granted elsewhere in law to carry firearms.

7 E. Notwithstanding the provisions of subsection A of this
8 section, on any property designated as a municipal zoo or park of
9 any size that is owned, leased, operated or managed by:

10 1. A public trust created pursuant to the provisions of Section
11 176 of Title 60 of the Oklahoma Statutes; or

12 2. A nonprofit entity,
13 an individual shall be allowed to carry a concealed handgun but not
14 openly carry a handgun on the property.

15 F. Any person violating the provisions of paragraph 2 or 3 of
16 subsection A of this section shall, upon conviction, be guilty of a
17 misdemeanor punishable by a fine not to exceed Two Hundred Fifty
18 Dollars (\$250.00). A person violating any other provision of
19 subsection A of this section may be denied entrance onto the
20 property or removed from the property. If the person refuses to
21 leave the property and a peace officer is summoned, the person may
22 be issued a citation for an amount not to exceed Two Hundred Fifty
23 Dollars (\$250.00).

1 G. ~~No~~ Any person who is not in possession of a valid handgun
2 license issued pursuant to the provisions of the Oklahoma Self-
3 Defense Act or who is carrying or in possession of a firearm as
4 otherwise permitted by law or who is carrying or in possession of a
5 machete, blackjack, loaded cane, hand chain or metal knuckles shall
6 not be authorized to carry the firearm, machete, blackjack, loaded
7 cane, hand chain or metal knuckles into or upon any public college,
8 public university or public technology center school property or
9 building, except as provided in this subsection. ~~For purposes of~~
10 ~~this subsection, the following property shall not be construed to be~~
11 ~~college, university or technology center school property:~~

12 1. Any property set aside for the use or parking of any motor
13 vehicle, whether attended or unattended, provided the firearm,
14 machete, blackjack, loaded cane, hand chain or metal knuckles are
15 carried or stored as required by law and the firearm, machete,
16 blackjack, loaded cane, hand chain or metal knuckles are not removed
17 from the motor vehicle without the prior consent of the public
18 college or public university president or public technology center
19 school administrator while the vehicle is on any public college,
20 public university or public technology center school property;

21 2. Any property authorized for possession or use of firearms,
22 machetes, blackjacks, loaded canes, hand chains or metal knuckles by
23 college, university or technology center school policy; ~~and~~

1 3. ~~Any property authorized by the written consent of the~~
2 ~~college or university president or technology center school~~
3 ~~administrator, provided the written consent is carried with the~~
4 ~~firearm, machete, blackjack, loaded cane, hand chain or metal~~
5 ~~knuckles and the valid~~ person in possession of a valid handgun
6 license while on issued pursuant to the provisions of the Oklahoma
7 Self-Defense Act shall be authorized to carry a concealed handgun
8 into or upon any public college, public university or public
9 technology center school property or building that the person is
10 authorized to be in. Under no circumstances shall consent to carry
11 a concealed handgun by a person with a valid handgun license on any
12 public college, public university, or public technology center
13 school property or building be denied by the public college, public
14 university, or public technology center school administrator unless
15 evidence is shown that the licensee has previously been involved in
16 a violent incident or an act that showed deliberate or reckless
17 disregard for the health or safety of the faculty, staff, students,
18 or any other person; and

19 4. The public college, public university, or public technology
20 center school shall be authorized to prohibit any person who is or
21 is not in possession of a valid handgun license issued pursuant to
22 the provisions of the Oklahoma Self-Defense Act from carrying a
23 concealed handgun or any other firearm into any event venue where a
24 ticket is purchased of monetary value on the property or building

1 venue of the public college, public university, or public technology
2 center school. For purposes of this paragraph, "event venue" shall
3 be defined as the venue of any athletic, theatric, musical, or
4 similar event in which a ticket of monetary value is required for
5 entry.

6 ~~The college, university or technology center school may notify~~
7 ~~the Oklahoma State Bureau of Investigation within ten (10) days of a~~
8 ~~violation of any provision of this subsection by a licensee. Upon~~
9 ~~receipt of a written notification of violation, the Bureau shall~~
10 ~~give a reasonable notice to the licensee and hold a hearing. At the~~
11 ~~hearing, upon a determination that the licensee has violated any~~
12 ~~provision of this subsection, the licensee may be subject to an~~
13 ~~administrative fine of Two Hundred Fifty Dollars (\$250.00) and may~~
14 ~~have the handgun license suspended for three (3) months.~~

15 Nothing contained in any provision of this subsection shall be
16 construed to authorize or allow any public college, public
17 university or public technology center school to establish any
18 policy or rule that has the effect of prohibiting any person in
19 lawful possession of a handgun license or any person in lawful
20 possession of a firearm, machete, blackjack, loaded cane, hand chain
21 or metal knuckles from possession of a firearm, machete, blackjack,
22 loaded cane, hand chain or metal knuckles in places described in
23 paragraphs 1, 2 and 3 of this subsection. Nothing contained in any
24 provision of this subsection shall be construed to limit the

1 authority of any public college, public university or public
2 technology center school in this state from taking administrative
3 action against any student for any violation of any provision of
4 this subsection.

5 H. Except for acts of willful or wanton misconduct, any public
6 or private college, private university or private technology center
7 school shall be immune from and shall not be subject to any
8 liability arising from any accidental or act of self-defense
9 involving a firearm. The provisions of this subsection shall not
10 apply to claims pursuant to the Administrative Workers' Compensation
11 Act.

12 I. Nothing contained in any provision of the Oklahoma Self-
13 Defense Act shall be construed to limit, restrict, or prohibit in
14 any manner the existing rights of a private college, private
15 university or private technology center school to control the
16 possession of weapons on any property owned or controlled by the
17 private college, private university or private technology center
18 school entity. Nothing contained in any provision of this
19 subsection shall be construed to limit the authority of any private
20 college, private university or private technology center school in
21 this state from taking administrative action against any person for
22 any violation of any provision of this subsection.

1 J. It shall not be considered part of the job description of an
2 employee or with the scope of employment of an employee when the
3 employee carries or discharges a firearm pursuant to this section.

4 K. Nothing in this section shall prevent a public or private
5 college, public or private university or public or private
6 technology center school, employee or person who has suffered a loss
7 resulting from the discharge of a firearm to seek redress or damages
8 from the person who discharged the firearm or used the firearm
9 outside the provisions of the Oklahoma Self-Defense Act.

10 L. No public or private college, public or private university
11 or public or private technology center school is responsible for any
12 loss or damage from any firearm or accessories at any time.

13 M. The provisions of this section shall not apply to the
14 following:

15 1. Any peace officer or any person authorized by law to carry a
16 firearm in the course of employment;

17 2. District judges, associate district judges and special
18 district judges, who are in possession of a valid handgun license
19 issued pursuant to the provisions of the Oklahoma Self-Defense Act
20 and whose names appear on a list maintained by the Administrative
21 Director of the Courts, when acting in the course and scope of
22 employment within the courthouses of this state;

23 3. Private investigators with a firearms authorization when
24 acting in the course and scope of employment;

1 4. Elected officials of a county, who are in possession of a
2 valid handgun license issued pursuant to the provisions of the
3 Oklahoma Self-Defense Act, may carry a concealed handgun when acting
4 in the performance of his or her duties within the courthouses of
5 the county in which he or she was elected. The provisions of this
6 paragraph shall not allow the elected county official to carry the
7 handgun into a courtroom;

8 5. The sheriff of any county may authorize certain employees of
9 the county, who possess a valid handgun license issued pursuant to
10 the provisions of the Oklahoma Self-Defense Act, to carry a
11 concealed handgun when acting in the course and scope of employment
12 within the courthouse in the county in which the person is employed.
13 Nothing in the Oklahoma Self-Defense Act shall prohibit the sheriff
14 from requiring additional instruction or training before granting
15 authorization to carry a concealed handgun within the courthouse.
16 The provisions of this paragraph and of paragraph 6 of this
17 subsection shall not allow the county employee to carry the handgun
18 into a courtroom, sheriff's office, adult or juvenile jail or any
19 other prisoner detention area; and

20 6. The board of county commissioners of any county may
21 authorize certain employees of the county, who possess a valid
22 handgun license issued pursuant to the provisions of the Oklahoma
23 Self-Defense Act, to carry a concealed handgun when acting in the
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1 course and scope of employment on county annex facilities or grounds
2 surrounding the county courthouse.

3 I. For the purposes of this section, "motor vehicle" means any
4 automobile, truck, minivan, sports utility vehicle, or motorcycle,
5 as defined in Section 1-135 of Title 47 of the Oklahoma Statutes,
6 equipped with a locked accessory container within or affixed to the
7 motorcycle.

8 SECTION 2. This act shall become effective November 1, 2025.

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